

wick *v.* Doleman has been said to apply only where the settlor is the parent or stands *loco parentis*; but if this proposition were accepted literally, then if a testator devised an estate to A. a perfect stranger for life, with remainder to his first and other sons in tail, and created a term in the same estate for raising portions for the younger children of A., the second son of A., though, by the death of his elder brother without issue in A.'s lifetime, he succeeded to the estate, would also be entitled to share in the portions. Upon examination of the several authorities it will be found that at the most there are only a few dicta in support of the proposition suggested (c). Lord Hardwicke on *the [*390] other hand not only applied the doctrine of Chad-

(c) Thus, in *Hall v. Hewer*, Amb. 203, a testator devised his real estate to John Hewer for life, remainder to John's first and other sons in tail, remainder to his daughters in tail, remainder to Humphrey, second son of T. Hall, in fee. And the testator charged his estate with 6000*l.* in trust for the younger children of T. Hall, in case J. Hewer died without leaving issue. James the eldest son of T. Hall, died in the lifetime of J. Hewer, so that on the death of the latter, Humphrey was the eldest son of T. Hall. It was held upon the construction of the will, that the 6000*l.* was contingent until the death of J. Hewer, and then vested in such persons as were then the younger children of T. Hall, and as Humphrey was then the eldest he took nothing. This was the ground of the decision, and therefore the question did not arise whether if Humphrey had previously acquired a vested interest, he could have lost it by becoming the eldest son. Under no circumstances, however, could he have become disentitled, for there was no shifting of the estate, which had never been given to James the eldest son, but to Humphrey himself. The testator meant the estate and the portion to go together. The Court observed "There

was no case where the Court had considered a younger child as an eldest, but between parent and children, or those who stood in *loco parentis*." But this was merely a dictum.

In *Matthews v. Paul*, 3 Sw. 328 (and see *Adams v. Adams*, 25 Beav. 652; *Adams v. Roberts*, Ib. 658), a testatrix bequeathed her Imperial annuities and five per cent. stock in trust, upon the termination of the Imperial annuities (which event occurred in May, 1819) for the children of her daughter Mary Paul, except an eldest son. Mary Paul had at the testatrix's death five children, viz. two sons, John and Walter, and three daughters. John died before the termination of the annuities, so that on the occurrence of the latter event Walter was the eldest son, and the question was, whether he was to share in the portions and it was ruled that he was not, for that as the time of distribution was the period for ascertaining who were to be included in the class, it must equally be the period for ascertaining who were to be excluded. Here there was no real estate in settlement at all, and therefore the principle of *Chadwick v. Doleman* did not come into question. The Court, however, during the argument, observed, "The cases where this rule